

investments into a newly created account in the designated beneficiary's name. The account holder cannot dictate what a beneficiary thereafter does with the newly acquired account. Thus, the Trust cannot control the income from the Siebert Account once the Siebert Account is transferred to the Minors. The only way to effectuate the distribution that the Minors contend the Decedent intended to make would be through the Trust.

In short, the Trust provides that Wanvimol Keane is to receive income from the Siebert Account after the Decedent's death, which instruction is contrary to the transfer-on-death designation.

In their Demurrer, the Minors contend that Petitioner did not "provide any extrinsic evidence" to support their allegation that the Decedent intended for the Siebert Account to be an asset of the Trust. The Minors further point out that Petitioner did not provide any documents or writings to support the allegations. However, there is no requirement to produce evidence at the pleading stage. Nor is there a requirement for the 850 Petition to be pled with specificity.

The Petition alleges that the language of Article V.(B) reflects the Decedent's intent to make the Siebert Account a Trust asset; it further alleges that the Decedent understood and clearly communicated to Petitioner and his estate planning attorney that there was no designated beneficiary of the Siebert Account. Such facts are sufficient to state a cause of action under Probate Code section 850. (See *Placencia v. Strazicich* (2019) 42 Cal.App.5th 730, 734-735 [express intent in estate plan can overcome nonprobate character of asset]; *Araiza v. Yountkin* (2010) 188 Cal.App.4th 1120, 1126 [clear and convincing evidence of a different intent expressed in a trust may defeat designation of account beneficiary].)

The court makes no finding here as to the Decedent's intent with regard to the Siebert Account, and no part of this ruling should be used to argue for against any interpretation of the Trust. The court finds only that the allegations in the 850 Petition are sufficient at the pleading stage to overcome demurrer.

The demurrer is **OVERRULED**.

Counsel for Petitioner is ordered to serve notice of ruling on this Demurrer.

The Minors shall file a written response or objection to the 850 Petition within 10 days of service of the notice of ruling, extended for method of service.

01426892	Velasquez – Trust	TENTATIVE RULING Case: Velasquez – Trust 01426892 Calendar No.: 10 Date: 06/17/2026 MOTION TO BE RELIEVED AS COUNSEL (ROA 20) Attorney Marivel M. Zialcita seeks to be relieved as counsel for Art Vasquez. This motion came before the court on 4/15/26 and was continued for compliance with California Rules of Court, Rule 3.1362. Counsel has since complied. The court finds good cause to relieve attorney Marivel M. Zialcita as counsel of record for Art Vasquez. The motion is GRANTED. Withdrawal is effective upon filing of proof of service of the signed Order Granting Attorney’s Motion to Be Relieved – Civil (MC-053).
01389717	Machorro – Trust	TENTATIVE RULING Case: Machorro – Trust 01389717 Calendar No: 11 Date: 06/17/2026 MOTION TO DEEM REQUESTS FOR ADMISSION ADMITTED (ROA 235) Petitioner Vanessa Stone (“Petitioner”) moves for an order to deem admitted the facts set forth in the Requests for Admission, Set One, served on Respondent Lorelei Ann Griggs (“Respondent”). Petitioner further moves for monetary sanctions in the amount of \$1,060.00.